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Case Number: 24STCV17945 Hearing Date: September 22, 2026 Dept: 224

Manning v. Taylor

TENTATIVE RULING

Plaintiff's Motion to Strike Defendants' Demurrer and to Enforce Entry of Default, with Sanctions, is DENIED.

Plaintiff's Motion for Sanctions Against Defendants and Counsel is DENIED.

Introduction

On July 18, 2024, Plaintiff filed the Complaint in this action.

On October 4, 2024, Defendants filed a Demurrer and Motion to Strike the

Complaint.

On October 7, 2024, Plaintiff filed a Request for Entry of Default.

On October 22, 2024, the Clerk rejected the Request for Entry of Default on the ground that Defendants had filed responsive pleadings.

On August 1, 2025, Plaintiff filed the First Amended Complaint.

On November 4, 2025, Plaintiff filed the instant Motion to Strike Defendants' Demurrer and to Enforce Entry of Default, with Sanctions.

On January 20, 2026, Plaintiff filed the instant Motion for Sanctions Against Defendants and Counsel.

On February 13, 2026, Defendants filed a Demurrer and Motion to Strike the First Amended Complaint.

On September 9, 2026, Defendants filed Oppositions to both Motions.

On September 17, 2026, Plaintiff filed Responses to both Oppositions.

Legal Standard

Strike

“The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. [or] (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436.) An “immaterial allegation” means “irrelevant matter” as that term is used in Section 436. (Code Civ. Proc., § 431.10(c).) “An immaterial allegation in a pleading is any of the following: (1) An allegation that is not essential to the statement of a claim or defense. (2) An allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense. (3) A demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.” (Code Civ. Proc., § 431.10(b).)

Sanctions

A motion for sanctions can be brought against an attorney or a party for presenting to the court a frivolous paper or a paper for an improper purpose. (Code Civ. Proc., § 128.7.)

To prevail on a motion for sanctions under section 128.7, the movant must establish that (1) a challengeable paper (2) was presented to the court and (3) the paper was frivolous (i.e., without legal or factual merit) or brought for an improper purpose. (Code Civ. Proc., §§ 128.7(b), (c).)

Section 128.7 is modeled after, and nearly identical to, the 1993 amended version of FRCP 11. (Guillemin v. Stein (2002) 104 Cal.App.4th 156, 167 (Guillemin); see Bucur v. Ahmad (2016) 244 Cal.App.4th 175, 190 (Bucur).) When the California Legislature enacted § 128.7, it also adopted the Advisory Committee's notes to Rule 11 as a statement of legislative intent. (Barnes v. Department of Corr. (1999) 74 Cal.App.4th 126, 132 (Barnes).) Thus, cases interpreting the amended FRCP 11 and the Advisory Committee's notes to Rule 11 can be used as persuasive authority. (See Bucur, *supra*, at p. 190; see, e.g., Barnes, *supra*, at p. 136 [court relied on Advisory Committee's notes to conclude that formal, rather than informal, notice is required under § 128.7].)

“As with Rule 11 (28 U.S.C.) sanctions, Code of Civil Procedure section 128.7 sanctions should be ‘made with restraint’ [citation], and are not mandatory even if a claim is frivolous. [Citations.] Further, when determining whether sanctions should be imposed, the issue is not merely whether the party would prevail on the underlying factual or legal argument. Instead, courts should apply an objective test of reasonableness, including whether ‘any reasonable attorney would agree that [the claim] is totally and completely without merit.’ [Citations.] Thus, the fact that a plaintiff fails to provide a sufficient showing to overcome a demurrer or to survive summary judgment is not, in itself, enough to warrant the imposition of sanctions. [Citations.]” (Peake v. Underwood (2014) 227 Cal.App.4th 428, 448.)

CCP section 128.5 provides that “[a] trial court may order a party, the party’s attorney, or both, to pay the reasonable expenses, including attorney’s fees, incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay.” (Code Civ. Proc., § 128.5(a).) “‘Actions or tactics’ include, but are not limited to, the making or opposing of motions or the filing and service of a complaint, cross-complaint, answer, or other responsive pleading.” (Id., § 128.5(b)(1).) “‘Frivolous’ means totally and completely without merit or for the sole purpose of harassing an opposing party.” (Id., § 128.5(b)(2).)

Motion to Strike Defendants' Demurrer and to Enforce Entry of Default

Plaintiff Stacy L. Manning moves to strike Defendants' October 4, 2024 Demurrer as "procedurally void," to compel entry of default nunc pro tunc as of October 7, 2024, to vacate Defendants' pending motions, and to set a default prove-up hearing. Plaintiff contends that Defendants failed to respond to the Complaint, that the Clerk had a ministerial duty to enter default upon receipt of her request, and that Defendants' pleadings are void because they were filed on behalf of a dissolved corporation.

Procedural Defects

As an initial matter, the relief Plaintiff seeks has already been sought and resolved. Plaintiff's Request for Entry of Default was rejected on October 22, 2024, and the Court thereafter considered and ruled upon Defendants' Demurrer on July 25, 2025 — a disposition that necessarily proceeded from the determination that Defendants were not in default and that their responsive pleading was properly before the Court.

The motion appears to be an improper motion for reconsideration. A motion asking the Court to undo those determinations is an application to reconsider, whatever its label. (*Passavanti v. Williams*, supra, 225 Cal.App.3d at pp. 1605-1606.) Plaintiff identifies no new or different facts, circumstances, or law. The motion re-argues the same October 2024 chronology on the same authorities previously considered. Section 1008, subdivision (e) makes these requirements jurisdictional, and a party may not evade them by recaptioning a reconsideration request as a motion to strike.

Independently, the motion seeks relief the Court can no longer grant. The pleading Plaintiff asks the Court to strike is Defendants' Demurrer to the original Complaint. That Complaint was superseded when Plaintiff filed her First Amended Complaint on August 1, 2025, and it ceased at that point to have any effect as a pleading. (*State Compensation Ins. Fund v. Superior Court*, supra, 184 Cal.App.4th at pp. 1130-1131.) The Demurrer directed to it was likewise spent; there is nothing remaining to strike. (*Sylmar Air Conditioning v. Pueblo Contracting Services, Inc.*, supra, 122 Cal.App.4th at p. 1054.) The operative challenge to the operative pleading is Defendants' Demurrer and Motion to Strike the First Amended

Complaint, filed February 13, 2026, which this motion does not address and which was filed months after this motion was served.

Nor may default be entered against parties who have appeared and are actively litigating the operative pleading.

The motion is DENIED on these grounds.

Motion for Sanctions

Plaintiff moves for sanctions "in the maximum amount permitted by law" against Defendants and counsel Elsa Larsen under Code of Civil Procedure sections 128.5, 128.7, and 177.5, and the Court's inherent authority, on the ground that counsel's meet and confer declaration mischaracterized service as "purported," invoked sections 430.41 and 435.5 on behalf of defaulted parties, and omitted material facts concerning corporate dissolution.

Notice

The notice of motion does not state the amount of monetary sanctions sought, and seeks sanctions against "Defendants" collectively without identifying the particular persons or entities targeted. Defendants invoke Code of Civil Procedure section

2023.040, which by its terms governs sanctions under the Civil Discovery Act. Whether or not that section applies, basic notice principles require that a party facing a monetary sanction be told what amount is sought against whom, supported by a declaration establishing the factual basis for that amount. Neither is supplied here.

Sections 128.7 and 128.5

Sanctions under section 128.7 require compliance with the twenty-one day safe harbor, which is mandatory and may not be excused. (Code Civ. Proc., § 128.7, subd. (c)(1); *Li v. Majestic Industry Hills LLC*, supra, 177 Cal.App.4th at pp. 591, 595.) Plaintiff concedes she has not complied, stating in her motion that she "will comply with the 21-day safe harbor requirement prior to seeking an order under CCP § 128.7." The request is premature.

Plaintiff's alternative reliance on section 128.5 does not avoid the requirement. Where, as here, the asserted misconduct is a filing that could have been withdrawn or corrected, section 128.5 incorporates the same safe harbor. (Code Civ. Proc., §128.5, subd. (f)(1)(B); *Nutrition Distribution, LLC v. Southern SARMS, Inc.*, supra, 20 Cal.App.5th at pp. 127-131.)

Substantively, section 128.5 requires bad faith conduct that is frivolous or undertaken solely to cause unnecessary delay. The declaration Plaintiff challenges was expressly authorized by section 430.41, subdivision (a)(2), and the responsive pleading it extended was filed within the statutory period. Availing oneself of a statutory extension and then filing a timely demurrer is not sanctionable conduct. That Defendants characterized service as "purported" reflects a disputed position on a contested issue, not a knowing misrepresentation.

Section 177.5

Section 177.5 authorizes sanctions for violation of a lawful court order without good cause. Plaintiff identifies no order that was violated. The section is inapplicable.

Inherent Authority

Sanctions under the Court's inherent authority for fraud upon the court require a showing of egregious misconduct that corrupts the judicial process itself. (See *Stephen Slesinger, Inc. v. Walt Disney Co.* (2007) 155 Cal.App.4th 736, 758-765.) Plaintiff's showing consists of her disagreement with Defendants' litigation positions and with rulings adverse to her. That does not approach the standard.

Mootness of the Underlying Premise

Finally, the premise of the motion — that Defendants stood in default when counsel filed her declaration — fails for the reasons stated above. No default was entered, and a defendant may file a responsive pleading at any time before entry of default. Defendants' Demurrer and Motion to Strike the First Amended Complaint was filed February 13, 2026, accepted for filing, and remains pending.

The motion for sanctions is DENIED.

Conclusion

Plaintiff's Motion to Strike Defendants' Demurrer and to Enforce Entry of Default is DENIED. The request for sanctions is DENIED.

Plaintiff's Motion for Sanctions Against Defendants and Counsel is DENIED.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at SMCDept224@lacourt.org indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.